

Tentative Rulings and Resolution Review Hearings

June 8, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BARNETT, ET AL. VS. NORTH VALLEY DEVELOPMENTAL SERVICES, INC.

CASE NUMBER: 24CV-0204885

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on April 16, 2026 to Plaintiff Matthew Barnett, in pro per, for failure to appear on January 26, 2026 as ordered on January 12, 2026, failure to appear on April 13, 2026 as ordered on February 2, 2026, and failure to participate in the action. Former counsel for Plaintiff Barnett was relieved on January 20, 2026. Since then, the Court has issued two Orders to Show Cause and imposed monetary sanctions against Plaintiff Barnett, which have not been paid. All documents that have been sent to Plaintiff Barnett by the court have been returned undeliverable. The address used for service is the last known address located by former counsel after counsel undertook significant efforts to locate Plaintiff Barnett. It is Plaintiff Barnett's obligation to keep the court apprised of a valid address. The evidence before the Court shows that Plaintiff Barnett stopped responding to counsel as late as October 2025. Plaintiff Barnett has not appeared since his counsel was relieved. It appears that Plaintiff Barnett has abandoned the case. **An appearance by Plaintiff Barnett is required on today's calendar. If Plaintiff Barnett does not appear as ordered, the Court intends to dismiss Plaintiff Barnett as a named Plaintiff without prejudice pursuant to Gov. Code § 68608(b). A dismissal will not affect Plaintiff Barnett's ability to be a putative class member.**

BAXTER, ET AL. VS. NISSAN NORTH AMERICA INC

CASE NUMBER: 26CV-0210163

Tentative Ruling on Demurrer: Defendant Nissan North America, Inc. demurs to the Complaint filed on March 17, 2026 by Plaintiffs Denaro Joseph Baxter and Cassie Lee Smith. Plaintiffs filed a First Amended Complaint on May 27, 2026 as permitted by CCP § 472(a). The filing of the First Amended Complaint renders the Demurrer moot. The matter is dropped from calendar. **No appearance is necessary on today's calendar.**

CARLS VS. MCCARTY, ET AL.

CASE NUMBER: 23CV-0203298

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls' claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor's parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor's Guardian ad Litem on October 5, 2023. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary

information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor's parent, without bond. This option is only available if the value of the minor's estate, including the money to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.
- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. The Court intends to continue the matter to **Monday, August 10, 2026 at 8:30 a.m. in Department 63** for hearing on the Amended Petition. The Amended Petition is ordered to be filed no later than July 27, 2026. If Petitioner is unable to comply with the deadline, Petitioner is ordered to file by July 27, 2026 a status update informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. The clerk is directed to vacate the review hearing presently calendared for July 13, 2026.

GREAT WEST CASUALTY COMPANY VS. BOYD

CASE NUMBER: 25CVG-00585

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 13, 2026 to Plaintiff Great West Casualty Company and counsel Cholakian & Associates for their